

Position Paper of the Republic of Cuba on the Application of International Law to Information and Communication Technologies in Cyberspace

1. The applicability of international law in cyberspace is made difficult by the absence of specific international norms - both conventional and customary law - regulating this area. The absence of legal instruments relating to cyberspace means that existing legal norms can only be applied by analogy, with all the uncertainties, imprecision, and lack of definition that this entails.

2. While this situation does not diminish the scope of existing international obligations, it does make their effective implementation more difficult. Ultimately, the violation of the obligation not to interfere in the internal affairs of other States is established irrespective of whether Information and Communication Technologies (ICTs) or otherwise were used. In principle, the use, or the permissibility of a misuse of ICTs that manifests itself in the territory of another State may, depending on its nature, the extent of the intrusion and its consequences, constitute a violation of sovereignty.

3. It should be noted that activities in cyberspace are neither prohibited nor expressly regulated by international law. Furthermore, and in accordance with current international law, the unlawfulness of certain activities at the national legislative level does not imply their unlawfulness at the international level.

4. In this area, there is not even a consensus on basic concepts such as cyber offence, cyber incident, cybercrime, information operations, or the different types of ICT misuse. Tackling these real and potential threats requires legally binding instruments that define the primary concepts and obligations. This would also make it possible to promote an open, secure, stable, accessible and peaceful environment for the use of ICTs.

5. To maintain that current international law or voluntary provisions are sufficient is to guarantee a legal ambiguity that allows to act at convenience, avoiding the international responsibility that is generated for States when they commit internationally unlawful acts or omissions."

6. The concept of the use of force has been analyzed from a perspective that involves the notions of armed violence, coercive force or force of interference. From this point of view, it is understood that only armed physical force is prohibited by Article 2(4) of the United Nations Charter and that the definition of armed attack is much more restrictive than that of use of force. Under current international law, a cyber action does not constitute an armed attack in accordance with Article 2(4), since it lacks the physical characteristics and other requirements that define the aforementioned military attacks, their effects and legal consequences.

7. In fact, not every armed attack equates to the definition of an act of aggression under Article 1 of United Nations General Assembly resolution 3314 (XXI), which in principle should guide the Security Council's considerations in determining the existence of an act of aggression against the sovereignty, territorial integrity or political independence of a State; the only threshold that enables the invocation of the right to self-defense under Article 51 of the Charter of the United Nations.

8. Considering the misuse of ICTs as an act of aggression or war should inevitably lead to giving the same qualification to other contemporary practices, such as the application of sanctions or

unilateral coercive measures of financial, economic, and political pressure. In contrast to the possible and often hypothetical scenarios of damage resulting from the misuse of ICTs, international evidence does point to the existence of devastating effects of the application of unilateral coercive measures."

9. The Republic of Cuba is a clear example of a country that is being attacked economically, commercially and financially, with economic and humanitarian costs that are incompatible with the principles and purposes of international law and the United Nations Charter. This aggression is condemned by almost all the member states of the United Nations and its impact is duly documented. In addition, this genocidal policy classifies as an unlawful international act of a continuing nature for more than 60 years, which would aggravate the international responsibility of the aggressor State and transgressor of International Law, significantly more than any hypothetical cyber-operation."

10. In this line of reasoning there are no legal elements of weight that coherently and non-selectively justify the intention to change the scope of the legal concepts of war, crime of aggression or armed attack, just to justify the use of force as legitimate defense against a so-called cyber-attack and to ignore more urgent situations.

11. The covert and illegal use of information and communications technologies, the computer systems of other nations, by individuals, organizations and States, to carry out cyber attacks against third countries to provoke international conflicts must be rejected. In this context, international rules preventing the false attribution of cyber attacks by some States to justify their hostile offensive policies must be established.

12. Armed attacks, as regulated in Article 51 of the Charter of the United Nations, are the only action that justifies the exercise of self-defense as an exception to the jus cogens prohibition on the use of force. In this context, the use of force can only be understood as the use of the armed forces of one State against another and not the use of any type of force, whether economic, commercial, financial, cyber, or verbal.

13. The apparent regulatory vacuum regarding cyberspace and the absence of consolidated concepts cannot support a definition of cyberattack that represents an unjustified expansion of the notion of an armed attack to legitimize attacks under the supposed argument of a right to self-defense.

14. The above does not detract from or diminish the existence of the serious risks, concerns, and threats that exist in terms of cybersecurity. There are concerns about threats related to the possibility of using these technologies and means in the civil and military spheres for purposes not compatible with the Charter of the United Nations, particularly with regard to the maintenance of international peace and security. All this supports the establishment of legally binding norms that regulate the conduct of States and other actors in the matter."

15. Malicious use of ICT may constitute an internationally wrongful act, without this implying that it is equated to the use of force. States should have clear primary international obligations on the matter that also have an impact on other subjects such as large technology companies and

eventual independent actors, potential triggers of an international conflict through the malicious use of ICT.

16. International Humanitarian Law (IHL) only applies in conflict situations. The applicability of IHL is not limited to cyberspace, nor to any other physical or abstract realm. Similarly, targets that are not considered legitimate or in wartime, are targets that are protected against all types of attacks or actions, whether cyber or not.

17. For the Republic of Cuba, all States have the obligation to comply with and enforce compliance with IHL, although unfortunately one State has objected to reflecting this consensus on this customary rule at the XXXIII International Conference of the Red Cross and Red Crescent. This does not preclude the need to develop primary international norms for such situations, in the same way that new legal instruments are established in the field of disarmament with the aim of strengthening and complementing IHL

18. On the other hand, with regard to threats in cyberspace and the impact of international law on them, there are at least two other general questions of legal relevance that should be immediately resolved and regulated: the subjects and the attribution of liability.

19. Due to the physical relocation inherent in activities in cyberspace, from a regulatory perspective, different jurisdictions may be involved, whether due to the place of execution, the transit of the activity, or the territory where the effects or damage are perceived. This reinforces the need for legally binding regulations that specify the applicable legal regime and regulate state powers in this regard.

20. The secondary rules on State responsibility for internationally wrongful acts establish clear criteria for attributing international responsibility to States, but the nature of cyberspace and the potential subjects that could be involved require the progressive development of international law to respond effectively to existing threats. International law should regulate the extent of States' due diligence obligations toward all subjects acting under or through their jurisdiction.

21. Activities in cyberspace require specific regulation. In the same way that we should advance in the regulation of artificial intelligence, which, although it does not enjoy international subjectivity, interacts in cyberspace independently from the subjects of law, making it difficult to determine liability in the event of significant damages.

22. On the other hand, the concept of subject is essential for the development of efficient and effective international law. Unlike the internal normative order, where all the citizens of a State are subject to its legislative action and jurisdiction, at the international level, the condition of subject can only be determined by primary norms, so far non-existent in cyberspace.

23. Various actors operate in cyberspace, including states and their agents, large and small private companies, and individuals, both individually and in isolation. Emerging technologies such as artificial intelligence are also used. This broad spectrum of actors, the rapid development in this field, and the negative cross-border effects of actions in cyberspace constitute a significant regulatory challenge. Furthermore, there is no international mechanism under the auspices of the

United Nations to impartially and unequivocally determine the origin of incidents related to the use of ICTs.

24. The above-mentioned challenges cannot be met with the fragmented and diverse regulations of national jurisdictions and with supposed voluntary standards of good conduct that are easily ignored, without any legal consequences.

25. In this context, the implementation of the purposes and principles of the Charter of the United Nations in cyberspace, particularly the principles of sovereign equality, territorial integrity, non-intervention in the internal affairs of States, refraining from the use or threat of use of force against the territorial integrity and political independence of States, international cooperation for mutual and equitable benefit and interest, and the peaceful settlement of disputes, acquires particular relevance.

26. Finally, it should be stressed that a solid legal system should be characterized by the certainty it provides to its subjects and not by the ambiguities and loopholes where conflicts tend to occur. International law should clarify the way in which states have to conduct their activities and those of the subjects under their jurisdiction in cyberspace, both in peacetime and during armed conflicts.

27. Contemporary international law does not have binding primary rules that regulate the conduct of the different subjects that interact in cyberspace, nor does it protect all their legitimate interests. The above reaffirms the importance of a progressive development of international law in this area and the United Nations General Assembly has been assigned this function in accordance with the Charter of the United Nations."

28. As regards the applicability of international law, the relevant legal question is not whether or not to apply the existing rules, but how they are to be applied in a context where there are no primary rules governing the conduct or due diligence of States and other private interests that significantly control cyberspace. All this, in concrete situations that could involve very dissimilar subjects, with elements of virtuality, delocalization and capacity to generate international frictions.

29. The norms, principles, and institutions of general international law must be interpreted restrictively when applied to cyberspace, taking into account the gaps and lack of consensus, as well as the conceptual dispersion and challenges inherent in cyberspace.

30. It is politically dangerous and legally premature to consider that an improper use of ICTs could be equated to the use of force for the purpose of triggering the recourse to self-defense, when this is exclusively limited under Article 51 of the UN Charter to cases of armed attack."

31. The breadth and rapid development of cyberspace, its multifaceted use, and the challenges it poses for the effective implementation of contemporary international law require its immediate progressive development in a clearly deregulated area, with a significant diversity of actors, and where potential negative effects can be cross-border and generate international conflicts.

32. All of the above highlights the importance of strengthening the mandate of the Open-Ended Working Group on ICT Security and Use 2021-2025 (OEWG) and making it permanent, taking into account the complexity of the issues and their rapid evolution.

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